MURPHY HESSE TOOMEY & LEHANE LLP
Attorneys at Law

MEMORANDUM

To: Winchester Town Meeting
Philip Frattaroli, Winchester Town Moderator
Christopher Senior, Winchester Town Manager

From: Karis L. North, Town Counsel

Re: Overview of Eminent Domain

Date: November 3, 2026

What is "eminent domain" and what is a "taking?"

Eminent Domain is the process by which a municipality may "take" ownership of land from a private entity for a public purpose. The federal and Massachusetts constitutions require that takings be done by providing the landowner due process, and that the taking be for a public purpose. Public purpose is fairly broadly defined, but typically includes things like public infrastructure (streets, roads, utilities) and public amenities (parks, trails) but cannot be to advance the interests of a private entity.

A municipality that "takes" a property must provide reasonable compensation to the landowner for the land taken. Reasonable compensation is evidenced by a recent appraisal by the municipality but may be challenged by the landowner for up to three years after the taking has occurred. The landowner may bring additional evidence to a court (and ultimately a jury) to consider, including the fair market value of the property at the time of the taking, which can include the highest price which a hypothetical willing buyer would pay to a hypothetical willing seller in an assumed free and open market. Correia v. New Bedford Redevelopment Authority, 375 Mass. 360 (1978).

Who has authority to initiate a taking?

In Massachusetts, the due process steps are regulated by Chapter 79 of the General Laws, which provides that the Select Board is the authorized taking authority for municipalities. Chapter 40, section 14 of the General Laws requires that the Select Board must be authorized to undertake a taking by a 2/3 vote of Town Meeting. Consequently, no taking may be conducted without both a 2/3 majority of Town Meeting and the majority support of the Select Board. Unless both are achieved, there can be no taking. The authority whether to ultimately conduct a taking is vested exclusively in the Select Board after receiving the necessary approval of Town Meeting. Russel v. Canton, 361 Mass. 727, 731-32 (1972)[1].

[1] "We hold that the town could authorize the selectmen to take real estate by eminent domain, but that it could not direct or command them to do so. Although G. L. c. 40, § 14, requires that before land is taken by eminent domain the taking be authorized by a vote of the town, it vests the power to make the taking in the selectmen of the town. There is nothing in § 14 which makes such an authorization binding on the selectmen, or which prevents them from exercising their discretion and sound judgment in deciding whether to make a taking pursuant to the authorization. If the selectmen, being authorized by the town to make a taking, do not make it, the decision is not judicially reviewable as to its wisdom."

Under Chapter 40, section 8C of the General Laws, a Conservation Commission also has the authority to ask Town Meeting to take land and to put it under the jurisdiction and control of the Conservation Commission. However, the Select Board retains the ultimate discretion to authorize a taking, even when initiated by a Conservation Commission, and approved by Town Meeting.

What process must be followed once a taking is authorized by Town Meeting and a Select Board?

When the taking authority has been provided, the Select Board then must go through the steps required to exercise that authority. Principally, this includes issuing an Order of Taking, which describes in detail the land to be taken, and is then recorded at the applicable Registry of Deeds. Once an Order of Taking has been recorded, the municipality owns the land, even if there is a further challenge to the taking. The Select Board has to give notice of the taking to the landowner and offer the reasonable compensation (called the "pro tanto") within 30 days of recording the Order of Taking.

If the landowner agrees to allow the land to be taken, and agrees with the compensation provided, then no further steps may be required. The land is owned by the municipality as soon as the Order of Taking is recorded and there is no further dispute. This is a so-called "friendly taking." Friendly takings may also be arranged in advance of the issuance of the Order of Taking.

What happens if a landowner disputes the amount of compensation provided?

If a landowner is not satisfied with the compensation provided, they have three years to bring a claim challenging the compensation by bringing a lawsuit in the Superior Court Division of the Massachusetts Trial Court. During the course of the lawsuit, the compensation offered by the municipality is held in escrow. The parties then engage in the standard litigation process: discovery is served and answered, documents produced, depositions taken, experts retained and opinions disclosed. On average, most cases reach trial in the Superior Court approximately three years after filing. Both sides must pay their own attorneys' fees and there is no fee shifting in a takings challenge.

The landowner's valuation claims are ultimately resolved through a jury trial. Both sides (municipality and landowner) usually present their own expert valuations, and the jury is then left with the sole discretion to determine the "fair market value" of the taken property. "Fair market value" is defined as the highest price which a hypothetical willing buyer would pay to a hypothetical willing seller in an assumed free and open market." Correia v. New Bedford Redevelopment Authority, 375 Mass. 360, 361 (1978). This is not the amount set by the municipality and the ultimate determination of this amount lies with the jury. The jury determines if—and how much—a municipality may need to pay the landowner in excess of the originally offered amount.

At such trial the landowner may also challenge the public purpose for the taking, and/or the due process they received.

However, even if there is a challenge to the compensation provided or other elements, the taking is effective once the Order of Taking is recorded, and the Town owns the land. If a court determines that there was not a proper purpose, then the land could be returned to the owner. Otherwise, once the taking is done, it cannot be undone, even if the municipality disputes the amount awarded by a jury. By way of example: If a municipality takes a property and offers $10m, but the landowner disputes that valuation and argues the land is worth $20m, and a jury ultimately

decides that the municipality must pay $15m, the municipality is then required to pay an additional $5m on top of its original offer of $10m. The taking cannot be "undone." The municipality must also be statutory interest on the additional amount required to be paid.

What does this mean for Winchester?

If 2/3 of Town Meeting votes in favor of a taking, the question is then placed before the Select Board. If a 2/3 majority of Town Meeting does not support a taking, no taking can occur.

If a majority of the Select Board does not support a taking, regardless of Town Meeting's vote, no taking can occur.

If both Town Meeting and the Select Board approve a taking, an offer is made. If accepted, the taking is finalized. If challenged, the matter is litigated in Superior Court. A landowner has three years to make that challenge, and the offer made by the Town is the floor, not the ceiling, on the amount ultimately paid. It is possible and even likely that the valuation will be challenged, and if successful, the Town must pay the increased valuation, plus statutory interest. This could take three or more years. A jury will ultimately determine the price the Town would have to pay for the taking.